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2 Teona Pipia SB 343337
3 Martin Weingarten SB 201906
4 Sarkis Karayan SB 316926
5 Jomari Lucero SB 347716
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9 Telephone: 877.285.4918
10 Facsimile: 818.888.1260
11 *Attorneys for Plaintiff: Cavalry SPV I, LLC*

8 SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES
9 LIMITED CIVIL JURISDICTION

10 Cavalry SPV I, LLC,
11 Plaintiff,

12 vs.

13 CHARLIE D PONCE, an individual
14 , et al.,
15 Defendant.

Case No. 24CHLC00646

**DECLARATION IN SUPPORT OF
APPLICATION FOR ENTRY OF
DEFAULT JUDGMENT PURSUANT TO
CIVIL CODE § 1788.60(a)**

16 I, the undersigned, hereby declare as follows:

17 1. I am an employee of Cavalry Portfolio Services, LLC (hereinafter, "CPS"), which
18 performs collection services for Cavalry SPV I, LLC (Hereinafter "Plaintiff"), and am a qualified
19 witness. I am a competent person over eighteen years of age. Based on my review of the account
20 records maintained on Plaintiff's behalf, I have personal knowledge and make the statements
21 herein. Plaintiff is the current owner of, and/or successor to, the obligation sued upon, and was
22 assigned all the rights, title and interest to Defendant's CAPITAL ONE, N.A. account, ending in
23 XXXXXXXXXXXXX9197 (hereinafter, the "Account"). I have access to and have reviewed the
24 records pertaining to the Account and am authorized to make this declaration on Plaintiff's
25 behalf.

26 2. Plaintiff purchases portfolios of delinquent accounts from either the original
27 creditor or a subsequent purchaser of the account. As part of its operations, CPS, on behalf of
28 Plaintiff, operates and maintains computer systems, into which CPS, on behalf of Plaintiff,
integrates electronic records and information received from the seller.

1 3. I am familiar with the manner and method by which CPS, on behalf of Plaintiff,
2 creates and maintains its normal documents and records. The records are kept in the normal
3 course of business. CPS, on behalf of Plaintiff, maintains computerized account records,
4 including the account information that was provided to Plaintiff by CAPITAL ONE, N.A.. The
5 computerized account records include the balance at the time of sale and the date of sale of the
6 subject account. The records are kept in the ordinary course of business by representatives of
7 CPS, on behalf of Plaintiff, who are charged with the duty to accurately record any business act,
8 condition or event on the computer with entries made at or near the time of any such occurrence

9 4. On or about June 15, 2023, Plaintiff became the successor in interest to this
10 Account. CPS on behalf of Plaintiff acquired and incorporated the attached account records into
11 its business records, which are not modified or altered, as a result of Plaintiff's purchase of the
12 Account. These records are kept in the regular course of business on behalf of Plaintiff, and
13 along with the electronic records provided at purchase, are business records maintained by CPS
14 on behalf of Plaintiff for this Account.

15 5. Federal law required the original creditor to furnish Defendant with periodic
16 statements.

17 6. The accuracy of such records is relied upon by Plaintiff in purchasing and by CPS
18 on behalf of Plaintiff in collecting this Account. These records are relied upon in Plaintiff's and
19 CPS's regular course of business.

20 7. This Account was purchased on or after January 1, 2014

21 8. In accordance with California Civil Code section 1788.58(a)(3-8), CPS records
22 maintained on behalf of Plaintiff show the following relevant information concerning the
23 Account.

24 a. Plaintiff is the sole owner of the Account.

25 b. The Account was opened on May 23, 2018 and charged off on May 18, 2023 with
26 a balance of \$7,572.34

27 c. CPS records maintained on behalf of Plaintiff show that the balance of \$7,572.34
28 remains due and owing as of September 20, 2024. Plaintiff is not seeking to
recover any post-charge off interest and/or fees that may have been imposed by
the charge off creditor or subsequent purchasers of the debt and is seeking to

1 recover only that portion of the charge off balance that remains due and owing as
2 of September 20, 2024.

3 d. The last payment posted to the Account on November 19, 2022.

4 e. The charge-off creditor name and address at the time of charge off: CAPITAL
5 ONE, N.A. P.O. BOX 60519 CITY OF INDUSTRY CA 91716-0519.

6 f. The charge-off Account number associated with the debt at time of charge off was
7 Account No. ending in XXXXXXXXXXXXX9197.

8 g. Defendant's name and last known address as it appeared in the charge off
9 creditor's records: CHARLIE D PONCE 10254 E AVENUE R14 ,
10 LITTLEROCK, CA 93543-1525.

11 h. The names and addresses of all persons or entities that purchased the debt after
12 charge off, including the plaintiff debt buyer, are as follows:

13 i. CAVALRY SPV I, LLC, 1 American Lane Suite 220, Greenwich, CT 06831.
14 Prior to January 1, 2022, the address for CAVALRY SPV I, LLC was: 500
15 Summit Lake Drive, Suite 400, Valhalla, NY 10595.

16 9. CPS records maintained on behalf of Plaintiff state that Plaintiff, CPS or its
17 agents made demand for payment of the balance herein prior to making this declaration and
18 Defendant(s) failed to make full payment of the amount owed on the Account.

19 10. Attached hereto as Exhibits A, B, and C are the account records I have reviewed
20 in executing the declaration that relate to the Account and/or payment(s) received.

21 Exhibit A. Seller Data document and Chain of Title - establishing the facts
22 required under Civil Code sections 1788.58(a)(3), (a)(7), and (a)(8).

23 Exhibit B. Account Statements and/or Account records including, but not limited
24 to, the most recent monthly statement recording a purchase transaction, last payment, or
25 balance transfer - establishing the fact required under Civil Code section 1788.52(b) and
26 1788.58(a)(5).

27 Exhibit C. Account Statement - establishing the facts required under Civil Code
28 sections 1788.58(a)(4), and (a)(6).

11. The documents attached hereto are true and correct copies of documents provided
to CPS on behalf of Plaintiff, by the original creditor, being a reproduction of the records on file
on behalf of Plaintiff based upon my review, except to the extent that confidential and privileged

1 information and/or personal identifying information is omitted or redacted as required by local
2 rules, and applicable state and federal laws.

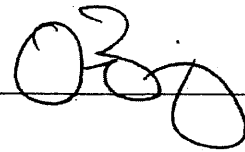
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1 12. If called upon to testify as a witness thereon, I could and would competently
2 testify as to all the facts stated herein.

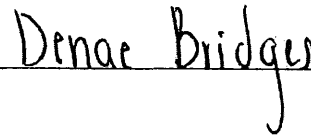
3 I declare under penalty of perjury under the laws of the State of California that the foregoing is
4 true and correct.

5 Executed this 14 day of October 2024, at Fort Lauderdale, Florida.
6

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8 Signature: _____



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10 By: _____



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13 Title: Legal Administrator
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EXHIBIT A

**Master Account Sale Agreement dated September 23, 2021
Account Sale Addendum dated April 24, 2023**

BILL OF SALE

Closing Date: June 15, 2023

Capital One, N.A. ("Seller"), in consideration of a Purchase Price of [REDACTED] and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, hereby sells, assigns, conveys, sets over, and transfers all right, title and interest in the Accounts identified in the Sale File entitled

OMEGA.BN0040.SALES.PROD-EAST.PFRLE20230612_BN0040_customer.dat.gz
OMEGA.BN0040.SALES.PROD-EAST.PFRLE20230612_BN0040_main.dat.gz
OMEGA.BN0040.SALES.PROD-EAST.PFRLE20230612_BN0040_phone.dat.gz

(which may be in electronic form) to Cavalry SPV I, LLC ("Buyer"), and including all proceeds thereof of any kind, without recourse or representation except as expressly provided herein or on the terms, and subject to the conditions, set forth in the Agreement (as defined below).

This Bill of Sale is delivered pursuant to and in accordance with the terms of that certain Master Account Sale Agreement, dated as of September 23, 2021, by and between Seller and Buyer (as amended, restated or otherwise modified from time to time, the "Agreement"). All capitalized terms used, but not defined, in this Bill of Sale shall have the meanings assigned to such terms in the Agreement. This Bill of Sale does not amend the terms of the Agreement in any respect. The representations, warranties, covenants, agreements and indemnities contained in the Agreement shall not be superseded hereby but shall remain in full force and effect as and to the extent provided in the Agreement.

The Cutoff Date for the Sale File was June 12, 2023. The aggregate Sale Balance of the Accounts as of the Cutoff Date was [REDACTED]

IN WITNESS WHEREOF, Seller, by its duly authorized representative, has executed and delivered this Bill of Sale as of the date first above written.

CAPITAL ONE, NATIONAL ASSOCIATION

By: 

Name: Wesley Perkins

Title: Managing Vice President

Purchase Date:6/15/2023

1259

Data Excerpt from OMEGA.BN0040.SALES.PROD-EAST.PFRLE20230612_BN0040_customer.dat.gz
OMEGA.BN0040.SALES.PROD-EAST.PFRLE20230612_BN0040_main.dat.gz
OMEGA.BN0040.SALES.PROD-EAST.PFRLE20230612_BN0040_phone.dat.gz**

Field Name	Data Provided
ACCOUNT NUMBER	9197
CUST NM	CHARLIE D PONCE
CUST ADR 1	10254 E AVENUE R14
CUST ADR 2	
CUST CITY	LITTLE ROCK
CUST ST	CA
CUST ZIP	935431525
CUST SSN*	
OPEN DT	05/23/2018
CHRG OF DT	05/18/2023
LST PMT DT	11/19/2022
SALE BAL	7572.34

*Data displayed has been redacted for consumer privacy

**The data contained in this document was extracted from the electronic records transmitted by the seller concerning the referenced account



Capital One Services, LLC
P.O. Box 30285
Salt Lake City, UT 84130-0285

**Cavalry SPV I, LLC now owns your
account**

June 12, 2023

CHARLIE PONCE
10254 E AVENUE R14
LITTLEROCK, CA 93543-1525

Re: Account ending in 9197

Important Update: Cavalry SPV I, LLC now owns your account.

Dear CHARLIE PONCE,

Your credit card account with a balance of \$7,572.34 and your account agreement were sold and transferred on or about 06/12/2023 to:

Cavalry SPV I, LLC
1-800-724-1757
1 American Lane, Suite 220
Greenwich, CT 06831

Cavalry SPV I, LLC is now the owner of your account and is responsible for collecting future payments and answering questions you might have. They may contact you about your account directly or through a representative.

Since your Account has been sold, please do not send future payments to Capital One.

Thank you for your time as our customer. We understand that difficult financial situations can happen and we wish you the best going forward.

Sincerely,

Capital One

Puerto Rico Residents: You can request a copy of this document in Spanish.
Residentes de Puerto Rico: Pueden solicitar una copia de este documento en Español.

**THIS LETTER IS FOR INFORMATIONAL PURPOSES ONLY AND IS NOT AN ATTEMPT TO COLLECT A
DEBT.**

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Card_LtrCD0090/MAIL:AP/CD002985/P:null/O:Y/EC:N/EM:000PG- 2/QA-1

EXHIBIT B



Payment Information

Payment Due Date **Jan 11, 2023** For online and phone payments, the deadline is 8pm ET.

New Balance **\$6,751.55** Minimum Payment Due **\$697.00**

LATE PAYMENT WARNING: If we do not receive your minimum payment by your due date, you may have to pay a late fee of up to \$38.00.

MINIMUM PAYMENT WARNING: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on this statement in about...	And you will end up paying an estimated total of...
Minimum Payment	22 Years	\$19,971

If you would like information about credit counseling services, call 1-888-326-8055.

Account Summary

Previous Balance	\$6,860.84
Payments	- \$300.00
Other Credits	\$0.00
Transactions	+ \$0.00
Cash Advances	+ \$0.00
Fees Charged	+ \$38.00
Interest Charged	+ \$152.71
New Balance	= \$6,751.55
Credit Limit	\$6,500.00
Available Credit (as of Dec 17, 2022)	\$0.00
Cash Advance Credit Limit	\$900.00
Available Credit for Cash Advances	\$0.00



Get your account
back on track.

Visit capitalone.com to make a payment today.

300080

Account Notifications

Please check page 3 of this statement for your Account Notifications.

Pay or manage your account at unionplus.capitalone.com

Customer Service: 1-800-622-2580

See reverse for Important Information



CHARLIE D PONCE
10254 E AVENUE R14
LITTLEROCK, CA 93543-1525



Save time, stay informed.
Discover new features with
the Capital One Mobile app.

Scan this QR Code with your phone's camera to download the
top-rated Capital One Mobile app.

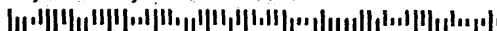
Payment Due Date: Jan 11, 2023

Account ending in 9197

New Balance **\$6,751.55** Minimum Payment Due **\$697.00** Amount Enclosed \$ _____

Please send us this portion of your statement and only one check (or one money order) payable to Capital One to ensure your payment is processed promptly. Allow at least seven business days for delivery.

Capital One
P.O. Box 60519
City of Industry CA 91716-0519



How can I Avoid Paying Interest Charges? If you pay your New Balance in full by the due date each month, we will not charge interest on new transactions that post to the purchase balance. If you have been paying in full without Interest Charges, but fail to pay your next New Balance in full, we will charge interest on the unpaid balance. Interest Charges on Cash Advances and Special Transfers start on the transaction date. Promotional offers may allow you to pay less than the total New Balance and avoid paying interest on new transactions that post to your purchase balance. See the front of your statement for additional information.

How is the Interest Charge Determined? Interest Charges accrue from the date of the transaction, date the transaction is processed or the first day of the Billing Cycle. Interest accrues daily on every unpaid amount until it is paid in full. Interest accrued during a Billing Cycle posts to your account at the end of the Billing cycle and appears on your next statement. You may owe Interest Charges even if you pay the entire New Balance one month, but did not do so the prior month. Once you start accruing Interest Charges, you generally must pay your New Balance in full two consecutive Billing Cycles before Interest Charges stop being posted to your Statement. Interest Charges are added to the corresponding segment of your account.

Do you assess a Minimum Interest Charge? We may assess a minimum Interest Charge of \$0.00 for each Billing Cycle if your account is subject to an Interest Charge.

How do you Calculate the Interest Charge? We use a method called Average Daily Balance (including new transactions).

1. First, for each segment we take the beginning balance each day and add in new transactions and the periodic Interest Charge on the previous day's balance. Then we subtract any payments and credits for that segment as of that day. The result is the daily balance for each segment. However, if your previous statement balance was zero or a credit amount, new transactions which post to your purchase segment are not added to the daily balance.

2. Next, for each segment, we add the daily balances together and divide the sum by the number of days in the Billing Cycle. The result is the Average Daily Balance for each segment.

3. At the end of each Billing Cycle, we multiply your Average Daily Balance for each segment by the daily periodic rate (APR divided by 365) for that segment, and then we multiply the result by the number of days in the Billing Cycle. We add the Interest Charges for all segments together. The result is your total Interest Charge for the Billing Cycle.

The Average Daily Balance is referred to as the Balance Subject to Interest Rate in the Interest Charge Calculation section of this Statement.

NOTE: Due to rounding or a minimum Interest Charge, this calculation may vary slightly from the Interest Charge actually assessed.

How can I Avoid Membership Fees? If a Renewal Notice is printed on this statement, you may avoid paying an annual membership Fee by contacting Customer Service no later than 45 days after the last day in the Billing Cycle covered by this statement to request that we close your account. To avoid paying a monthly membership Fee, close your account and we will stop assessing your monthly membership Fee.

How can I Close My Account? You can contact Customer Service anytime to request that we close your account.

How do you Process Payments? When you make a payment, you authorize us to initiate an ACH or electronic payment that will be debited from your bank account or other related account. When you provide a check or check information to make a payment, you authorize us to use information from the check to make a one-time ACH or other electronic transfer from your bank account. We may also process it as a check transaction. Funds may be withdrawn from your bank account as soon as the same day we process your payment.

How do you Apply My Payment? We generally apply payments up to your Minimum Payment first to the balance with the lowest APR (including 0% APR), and then to balances with higher APRs. We apply any part of your payment exceeding your Minimum Payment to the balance with the highest APR, and then to balances with lower APRs.

Billing Rights Summary (Does not Apply to Small Business Accounts)

What To Do If You Think You Find A Mistake On Your Statement: If you think there is an error on your statement, write to us at:
P.O. Box 30285, Salt Lake City, UT 84130-0285.

In your letter, give us the following information:

- Account information: Your name and account number.
- Dollar amount: The dollar amount of the suspected error.
- Description of Problem: If you think there is an error on your bill, describe what you believe is wrong and why you believe it is a mistake. You must contact us within 60 days after the error appeared on your statement. You must notify us of any potential errors in writing. You may call us or notify us electronically, but if you do we are not required to investigate any potential errors and you may have to pay the amount in question. We will notify you in writing within 30 days of our receipt of your letter. While we investigate whether or not there has been an error, the following are true:
 - We cannot try to collect the amount in question, or report you as delinquent on that amount. The charge in question may remain on your statement, and we may continue to charge you interest on that amount. But, if we determine that we made a mistake, you will not have to pay the amount in question or any interest or other fees related to that amount.
 - While you do not have to pay the amount in question until we send you a notice about the outcome of our investigation, you are responsible for the remainder of your balance.
 - We can apply any unpaid amount against your credit limit. Within 90 days of our receipt of your letter, we will send you a written notice explaining either that we corrected the error (to appear on your next statement) or the reasons we believe the bill is correct.

Your Rights If You Are Dissatisfied With Your Purchase: If you are dissatisfied with the goods or services that you have purchased with your credit card, and you have tried in good faith to correct the problem with the merchant, you may have the right not to pay the remaining amount due on the purchase. To use this right, the following must be true:

- 1) You must have used your credit card for the purchase. Purchases made with cash advances from an ATM or with a check that accesses your credit card account do not qualify; and
- 2) You must not yet have fully paid for the purchase.

If all of the criteria above are met and you are still dissatisfied with the purchase, contact us in writing at: P.O. Box 30285, Salt Lake City, UT 84130-0285. While we investigate, the same rules apply to the disputed amount as discussed above. After we finish our investigation, we will tell you our decision. At that point, if we think you owe an amount and you do not pay we may report you as delinquent.

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ETC-08 10/01/2020



Pay online at unionplus.capitalone.com



Pay using the Capital One mobile app



Customer Service 1-800-622-2580

Changing your mailing address?

You can change your address by signing into your account online or by calling Customer Service.

Any written request on this form will not be honored.

How do I Make Payments? You may make your payment in several ways:

1. Online Banking by logging into your account;
2. Capital One Mobile Banking app for approved electronic devices;
3. Calling the telephone number listed on the front of this statement and providing the required payment information;
4. Sending mail payments to the address on the front of this statement with the payment coupon or your account information.

When will you Credit My Payment?

- For mobile, online or over the phone, as of the business day we receive it, as long as it is made by 8 p.m. ET.
- For mail, as of the business day we receive it, as long as it is received by 5 p.m. local time at our processing center. You must send the bottom portion of this statement and your check to the payment address on the front of this statement. Please allow at least seven (7) business days for mail delivery. Mailed payments received by us at any other location or payments in any other form may not be credited as of the day we receive them.



Transactions			
Visit unionplus.capitalone.com to see detailed transactions.			
CHARLIE D PONCE #9197: Payments, Credits and Adjustments			
Trans Date	Post Date	Description	Amount
Nov 19	Nov 19	CAPITAL ONE MOBILE PYMTAuthDate 19-Nov	- \$300.00
CHARLIE D PONCE #9197: Transactions			
Trans Date	Post Date	Description	Amount
Fees			
Trans Date	Post Date	Description	Amount
Dec 12	Dec 12	PAST DUE FEE	\$38.00
Total Fees for This Period			\$38.00
Interest Charged			
Interest Charge on Purchases			\$152.71
Interest Charge on Cash Advances			\$0.00
Interest Charge on Other Balances			\$0.00
Total Interest for This Period			\$152.71
Totals Year-to-Date			
Total Fees charged			\$266.00
Total Interest charged			\$1,570.40

Interest Charge Calculation			
Your Annual Percentage Rate (APR) is the annual interest rate on your account.			
Type of Balance	Annual Percentage Rate (APR)	Balance Subject to Interest Rate	Interest Charged
Purchases	26.99% D	\$6,661.28	\$152.71
Cash Advances	27.74% D	\$0.00	\$0.00
Variable APRs: If you have a letter code displayed next to any of the above APRs, this means they are variable APRs. They may increase or decrease based on one of the following indices (reported in The Wall Street Journal) as described below.			
Code next to your APR(s)	How do we calculate your APR(s)?	When your APR(s) will change	
P	Prime Rate + margin	The first day of the Billing Cycles that end in Jan., April, July and Oct.	
L	3 month LIBOR + margin		
D	Prime Rate + margin	The first day of each Billing Cycle	
F	1 month LIBOR + margin		



Account Notifications

- ① For questions about this account, please give us a call at 1-800-955-6600. We'll be glad to help you Monday through Friday from 8 a.m. to 11 p.m. ET, and Saturday and Sunday from 8 a.m. to 5 p.m. ET.
- ① Your account has gone over its credit limit and is currently past due.
- ① You were assessed a past due fee because your minimum payment was not received by the due date. To avoid this fee in the future, we recommend that you allow at least 7 business days for your minimum payment to reach Capital One.

EXHIBIT C



Payment Information

Payment Due Date: **PAST DUE**
For online and phone payments, the deadline is 8pm ET.

New Balance **\$7,572.34**
Minimum Payment Due **\$7,572.34**

IMPORTANT: Your account has charged off and is now serviced by the Recoveries department at 1-800-258-9319. Your full balance is due. Any payment you make will reduce your balance and help pay off your debt faster. The amount you owe may differ if you've entered into a separate payment agreement.

Account Summary

Previous Balance	\$7,394.53
Payments	\$0.00
Other Credits	\$0.00
Transactions	+ \$0.00
Cash Advances	+ \$0.00
Fees Charged	+ \$0.00
Interest Charged	+ \$177.81
New Balance	= \$7,572.34
Available Credit (as of May 17, 2023)	N/A

Account Notifications

- ① Welcome to your account notifications. Check back here each month for important updates about your account.

Pay or manage your account at unionplus.capitalone.com

Customer Service: 1-800-622-2580

See reverse for Important Information



CHARLIE D PONCE
10254 E AVENUE R14
LITTLEROCK, CA 93543-1525



Payment Due Date: **Past Due** Account ending in 9197

New Balance **\$7,572.34** Minimum Payment Due **\$7,572.34** Amount Enclosed \$ _____

Please send us this portion of your statement and only one check (or one money order) payable to Capital One to ensure your payment is processed promptly. Allow at least seven business days for delivery.

Capital One
P.O. Box 60519
City of Industry CA 91716-0519



How can I Avoid Paying Interest Charges? If you pay your New Balance in full by the due date each month, we will not charge interest on new transactions that post to the purchase balance. If you have been paying in full without interest charges, but fail to pay your next New Balance in full, we will charge interest on the unpaid balance. Interest Charges on Cash Advances and Special Transfers start on the transaction date. Promotional offers may allow you to pay less than the total New Balance and avoid paying interest on new transactions that post to your purchase balance. See the front of your statement for additional information.

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How can I Close My Account? You can contact Customer Service anytime to request that we close your account.

How do you Process Payments? When you make a payment, you authorize us to initiate an ACH or electronic payment that will be debited from your bank account or other related account. When you provide a check or check information to make a payment, you authorize us to use information from the check to make a one-time ACH or other electronic transfer from your bank account. We may also process it as a check transaction. Funds may be withdrawn from your bank account as soon as the same day we process your payment.

How do you Apply My Payment? We generally apply payments up to your Minimum Payment first to the balance with the lowest APR (including 0% APR), and then to balances with higher APRs. We apply any part of your payment exceeding your Minimum Payment to the balance with the highest APR, and then to balances with lower APRs.

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P.O. Box 30285, Salt Lake City, UT 84130-0285.

In your letter, give us the following information:

- Account information: Your name and account number.
- Dollar amount: The dollar amount of the suspected error.
- Description of Problem: If you think there is an error on your bill, describe what you believe is wrong and why you believe it is a mistake. You must contact us within 60 days after the error appeared on your statement. You must notify us of any potential errors in writing. You may call us or notify us electronically, but if you do we are not required to investigate any potential errors and you may have to pay the amount in question. We will notify you in writing within 30 days of our receipt of your letter. While we investigate whether or not there has been an error, the following are true:
 - We cannot try to collect the amount in question, or report you as delinquent on that amount. The charge in question may remain on your statement, and we may continue to charge you interest on that amount. But, if we determine that we made a mistake, you will not have to pay the amount in question or any interest or other fees related to that amount.
 - While you do not have to pay the amount in question until we send you a notice about the outcome of our investigation, you are responsible for the remainder of your balance.
 - We can apply any unpaid amount against your credit limit. Within 90 days of our receipt of your letter, we will send you a written notice explaining either that we corrected the error (to appear on your next statement) or the reasons we believe the bill is correct.

Your Rights If You Are Dissatisfied With Your Purchase: If you are dissatisfied with the goods or services that you have purchased with your credit card, and you have tried in good faith to correct the problem with the merchant, you may have the right not to pay the remaining amount due on the purchase. To use this right, the following must be true:

- 1) You must have used your credit card for the purchase. Purchases made with cash advances from an ATM or with a check that accesses your credit card account do not qualify; and
- 2) You must not yet have fully paid for the purchase.

If all of the criteria above are met and you are still dissatisfied with the purchase, contact us in writing at: P.O. Box 30285, Salt Lake City, UT 84130-0285. While we investigate, the same rules apply to the disputed amount as discussed above. After we finish our investigation, we will tell you our decision. At that point, if we think you owe an amount and you do not pay we may report you as delinquent.

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ETC-08 10/01/2020



Pay online at unionplus.capitalone.com



Pay using the Capital One mobile app



Customer Service 1-800-622-2580

Changing your mailing address?

You can change your address by signing into your account online or by calling Customer Service.

Any written request on this form will not be honored.

How do I Make Payments? You may make your payment in several ways:

1. Online Banking by logging into your account;
2. Capital One Mobile Banking app for approved electronic devices;
3. Calling the telephone number listed on the front of this statement and providing the required payment information;
4. Sending mail payments to the address on the front of this statement with the payment coupon or your account information.

When will you Credit My Payment?

- ♦ For mobile, online or over the phone, as of the business day we receive it, as long as it is made by 8 p.m. ET.
- ♦ For mail, as of the business day we receive it, as long as it is received by 5 p.m. local time at our processing center. You must send the bottom portion of this statement and your check to the payment address on the front of this statement. Please allow at least seven (7) business days for mail delivery. Mailed payments received by us at any other location or payments in any other form may not be credited as of the day we receive them.



Transactions			
Visit unionplus.capitalone.com to see detailed transactions.			
CHARLIE D PONCE #9197: Payments, Credits and Adjustments			
Trans Date	Post Date	Description	Amount
CHARLIE D PONCE #9197: Transactions			
Trans Date	Post Date	Description	Amount
Fees			
Trans Date	Post Date	Description	Amount
Total Fees for This Period			\$0.00
Interest Charged			
Interest Charge on Purchases			\$177.81
Interest Charge on Cash Advances			\$0.00
Interest Charge on Other Balances			\$0.00
Total Interest for This Period			\$177.81
Totals Year-to-Date			
Total Fees charged			\$0.00
Total Interest charged			\$820.79

Interest Charge Calculation			
Your Annual Percentage Rate (APR) is the annual interest rate on your account.			
Type of Balance	Annual Percentage Rate (APR)	Balance Subject to Interest Rate	Interest Charged
Purchases	27.99% D	\$7,480.20	\$177.81
Cash Advances	28.74% D	\$0.00	\$0.00
Variable APRs: If you have a letter code displayed next to any of the above APRs, this means they are variable APRs. They may increase or decrease based on one of the following indices (reported in The Wall Street Journal) as described below.			
Code next to your APR(s)	How do we calculate your APR(s)?	When your APR(s) will change	
P	Prime Rate + margin	The first day of the Billing Cycles that end in Jan., April, July and Oct.	
L	3 month LIBOR + margin		
D	Prime Rate + margin	The first day of each Billing Cycle	
F	1 month LIBOR + margin		

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State, Bar number, and address): Chris D. Mandarich (220693), Teona Pipia (343337), Hayk Stambultsyan (320973), Martin Weingarten (SB201906) Mandarich Law Group LLP PO Box 109032 Chicago, IL 60610 TELEPHONE NO.: _____ FAX NO. (Optional): _____ E-MAIL ADDRESS (Optional): chrism@mandarichlaw.com ATTORNEY FOR (Name): Cavalry SPV I LLC as assignee of Capital One N.A.	FOR COURT USE ONLY Electronically FILED by Superior Court of California, County of Los Angeles 1/19/2024 12:00 PM David W. Slayton, Executive Officer/Clerk of Court, By G. Megerian, Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES STREET ADDRESS: 9425 Penfield Avenue, Room 1200 MAILING ADDRESS: 9425 Penfield Avenue, Room 1200 CITY AND ZIP CODE: Chatsworth 91311 BRANCH NAME: North Valley District, Chatsworth Courthouse	
PLAINTIFF/PETITIONER: Cavalry SPV I LLC as assignee of Capital One N.A.	
DEFENDANT/RESPONDENT: CHARLIE D PONCE an Individual	CASE NUMBER: 24CHLC00646
PROOF OF SERVICE OF SUMMONS	Ref. No. or File No.: 4768861

1. At the time of service I was at least 18 years of age and not a party to this action.
2. I served copies of (specify documents):
Summons; Complaint; Civil Case Cover Sheet; Civil Case Cover Sheet Addendum and Statement of Location; Notice of Case Assignment; Order to Show Cause Hearing/Trial Date; DECLARATION OF VENUE; ALTERNATIVE DISPUTE RESOLUTION(ADR); GENERAL ORDER; FIRST AMENDED GENERAL ORDER
3. a. Party served (specify name of party as shown on documents served):
CHARLIE D PONCE, an individual
- b. ☐ Person (other than the party in item 3a) served on behalf of an entity or as an authorized agent (and not a person under item 5b whom substituted service was made) (specify name and relationship to the party named in item 3a):
4. Address where the party was served:
10254 E AVENUE R14, LITTLEROCK, CA 93543-1525
5. I served the party (check proper box)
- a. ☐ **by personal service.** I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on (date): _____ at (time): _____
- b. ☒ **by substituted service.** On (date): **01/18/2024** at (time): **8:38 PM** I left the documents listed in item 2 with or in the presence of (name and title or relationship to person indicated in item 3):
Jane Doe, I delivered the documents to an individual who refused to give their name who identified themselves as the co-resident. The individual accepted service with direct delivery. The individual appeared to be a black-haired Hispanic female contact 25-35 years of age, 5'4"-5'6" tall and weighing 120-140 lbs.
- (1) ☐ (business) a person at least 18 years of age apparently in charge at the office or usual place of business of the person to be served. I informed him or her of the general nature of the papers.
- (2) ☒ (home) a competent member of the household (at least 18 years of age) at the dwelling house or usual place of abode of the party. I informed him or her of the general nature of the papers.
- (3) ☐ (physical address unknown) a person at least 18 years of age apparently in charge at the usual mailing address of the person to be served, other than a United States Postal Service post office box. I informed him or her of the general nature of the papers.
- (4) ☒ I thereafter caused to be mailed (by first class, postage prepaid) copies of the documents to the person to be served at the place where the copies were left (Code Civ. Proc § 415.20). Documents were mailed on (date): _____ from (city): _____ or ☒ a declaration of mailing is attached.

BY FAX



PLAINTIFF/PETITIONER: Cavalry SPV I LLC as assignee of Capital One N.A.	CASE NUMBER:
DEFENDANT/RESPONDENT: CHARLIE D PONCE an Individual	24CHLC00646

(5) ☒ I attach a **declaration of diligence** stating actions taken first to attempt personal service.

c. ☐ **by mail and acknowledgement of receipt of service.** I mailed the documents listed in item 2 to the party, to the address shown in item 4, by first-class mail, postage prepaid,

(1) on (date):

(2) from (city):

(3) ☐ with two copies of the *Notice and Acknowledgement of Receipt* and a postage-paid return envelope addressed to me. (Attach completed *Notice and Acknowledgement of Receipt*.) (Code Civ. Proc., § 415.30)

(4) ☐ to an address outside California with return receipt requested. (Code Civ. Proc., § 415.40)

d. ☐ **by other means** (specify means of service and authorizing code section):

☐ Additional page describing service is attached.

6. The "Notice to the Person Served" (on the summons) was completed as follows:

a. ☒ as an individual defendant.

b. ☐ as the person sued under the fictitious name of (specify):

c. ☐ as occupant.

d. ☐ On behalf of (specify)

under the following Code of Civil Procedure section:

☐ 416.10 (corporation)

☐ 416.20 (defunct corporation)

☐ 416.30 (joint stock company/association)

☐ 416.40 (association or partnership)

☐ 416.50 (public entity)

☐ 415.95 (business organization, form unknown)

☐ 416.60 (minor)

☐ 416.70 (ward or conservatee)

☐ 416.90 (authorized person)

☐ 415.46 (occupant)

☐ other:

7. **Person who served papers**

a. Name: **Ramon Myers**

b. Address: **9175 E Ave S4, Littlerock, CA 93543**

c. Telephone number: **661-458-9926**

d. The fee for service was: **\$ 73.55**

e. I am:

(1) ☐ not a registered California process server.

(2) ☐ exempt from registration under Business and Professions Code section 22350(b).

(3) ☒ registered California process server:

(i) ☐ owner ☐ employee ☒ independent contractor.

For: **ABC Legal Services, LLC**

(ii) ☒ Registration No.: **2019216823**

Registration #: **6779**

(iii) ☒ County: **County of Los Angeles**

County: **Los Angeles**

BY FAX



8. ☒ I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.
or
9. ☐ I am a California sheriff or marshal and I certify that the foregoing is true and correct.

Date: 01/18/2024

Ramon Myers

(NAME OF PERSON WHO SERVED PAPERS/SHERIFF OR MARSHAL)

R. Myers

(SIGNATURE)

